

SENATE JOINT RESOLUTION 610

By Lowe

A RESOLUTION to propose an amendment to Article XI of the Constitution of Tennessee, relative to the right to food.

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article XI of the Constitution of the State of Tennessee be amended by adding the following language as a new section:

All individuals have a natural, inherent, and unalienable right to save and exchange seeds; and to acquire and consume the food of their own choosing, as long as an individual does not commit trespassing, theft, poaching, or other abuses of private property rights, public lands, or natural resources in the acquisition of seeds or food.

All individuals have the right to grow, raise, harvest, and produce the food of their own choosing on land that is not zoned for a particular use, or that is zoned for agricultural or residential use, or that is zoned for a mixture of uses that includes agricultural or residential use, by the local government entity that is authorized by law to zone such land, as long as an individual does not commit trespassing, theft, poaching, or other abuses of private property rights, public lands, or natural resources in the harvesting, production, or acquisition of food.

The recognition of these rights does not limit the state's power to regulate or prohibit the possession of seeds, and the growth, raising, and harvesting of plants, from which controlled and illegal substances are produced.

BE IT FURTHER RESOLVED, that the foregoing amendment be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published in accordance with Article XI, Section 3 of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the Senate is directed to deliver copies of this resolution to the Secretary of State and to the Director of the Office of Legislative Information Services.